

COVENANT AND AGREEMENT WITH THE CITY OF
HUNTINGTON BEACH

COMPAR, as sole owner, joint tenants, tenants in common (community owners), constituting the only person(s), partner(s), business association (s) having any interest in the real property described as follows:

PARCEL I: The North half of Lot 9 of Tract 405, as shown on a Map recorded in Book 16, page 31 of Miscellaneous Maps, records of Orange County, California. Except the East 135 feet thereof.

PARCEL II: The East 135 feet of the North half of Lot 9 of Tract 405, as shown on a Map recorded in Book 16, page 31 of Miscellaneous Maps, records of Orange County, California.

which property is located and known as approximately 180 feet north of Newman Avenue, between Beach Boulevard and Cameron Street.

Huntington Beach, California, does hereby covenant, promise and agree to and with the City of Huntington Beach, State of California, a municipal corporation, that:

In consideration of the granting to them of Division of Land No. 65-45

by the City, they will perform the following conditions, improvements, etc:

1. Beach Boulevard and Cameron Street shall be dedicated and fully improved to City and/or State Standards at the time each parcel is developed. Improvements shall include street trees, street lights, fire hydrants and sewer and water main extensions.
2. Water supply shall be through the City of Huntington Beach's water system at the time each parcel is developed.
3. Sewage disposal shall be through the City of Huntington Beach's sewage system at the time each parcel is developed.
4. The water, sewer, and fire hydrant system shall be approved by the Department of Public Works and Fire Department.
5. The property shall participate in the local drainage assessment district at the time each parcel is developed.
6. All utilities shall be installed underground.
7. A Parcel Map shall be filed with the City and recorded.

This covenant and agreement shall run with the lands and be binding upon any future owners, heirs, or assigns.

Dated: This 10th day of December, 1968.

Harold K. Smith & Shire Aoki (sign)
Paul A. Terry & Robert E. Seaman (sign)

STATE OF CALIFORNIA) SS.
COUNTY OF ORANGE)

On the 10th day of December, 1968,

before me the undersigned, a Notary Public in and for the said County, duly commissioned personally appeared Harold K. Smith, Shire Aoki, Paul A. Terry, Robert E. Seaman, known to me to be the persons whose names are subscribed to the foregoing instrument and acknowledged to me that they executed same.

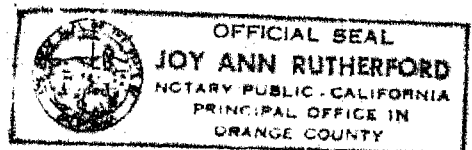
WITNESS my hand and official seal:

Joy Ann Rutherford
Notary Public in and for said County and State.

NOTARY SEAL

ATTESTED BY:

JOY ANN RUTHERFORD
My Commission Expires Dec. 1, 1969



Paul A. Terry
City Clerk